

24TRCV00922 24TRCV00922

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24TRCV00922 Hearing Date: September 14, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

EYAD WAHBY

;

Plaintiff,

vs.

GENERAL MOTORS LLC

;

Defendant.

Case

No.:

24TRCV00922

Hearing

Date:

September
14, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF EYAD WAHBY'S MOTION TO COMPEL THE
DEPOSITION OF DEFENDANT GENERAL MOTORS LLC'S PERSON MOST QUALIFIED AND
PRODUCTION OF DOCUMENTS

MOVING PARTY: Plaintiff, Eyad Wahby

RESPONDING

PARTY: Defendant, General Motors LLC

(1)

Plaintiff

Eyad Wahby's Motion to Compel the Deposition of Defendant General Motors LLC's
Person Most Qualified and Production of Documents is DENIED pursuant to Code of
Civil Procedure section 2025.450, subdivision (b)(2).

The

Court considers the moving papers filed on August 7, 2026, the opposition brief
filed on August 27, 2026, and the reply brief filed on September 4, 2026.

BACKGROUND

Factual

Background

On March 18, 2024, plaintiff Eyad Wahby ("Plaintiff") filed the Complaint
against defendants General Motors LLC ("Defendant") and DOES 1 through 10. The Complaint includes the following causes
of
action: (1) Violation of Subdivision (d) of Civil Code Section 1793.2; (2)

Violation of Subdivision (b) of Civil Code Section 1793.2; (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2; (4) Breach of Express Written Warranty – Civil Code Sections 1791.2, Subdivision (a), 1794; and (5) Breach of the Implied Warranty of Merchantability – Civil Code Sections 1791.1, 1794.

On January 21, 2025, Plaintiff served a deposition notice for Defendant's PMQ, scheduling the deposition for February 7, 2025. (Declaration of Matt Xie ("Xie Decl."), ¶ 12, Exh. 1.) The deposition notice included nineteen matters for examination and thirty-five requests for the production of documents. (Xie Decl., ¶ 12, Exh. 1.)

On January 29, 2025, Defendant served objections to the deposition notice. (Xie Decl., ¶ 13, Exh. 2.) It contended that the deposition had been unilaterally scheduled, indicating that neither the PMQ nor Defendant's counsel would be available on that date. (Xie Decl., Exh. 2.) Furthermore, Defendant expressed a willingness to meet and confer regarding the deposition date and raised objections regarding both the matters for examination and the requested documents. (Xie Decl., Exh. 2.) Moreover, Defendant agreed to provide a PMQ for specific categories. (Xie Decl., Exh. 2.)

On July 8, 2026, Plaintiff served an amended deposition notice for Defendant's PMQ, scheduling the deposition for July 24, 2026. (Xie Decl., ¶ 14, Exh. 3.) On July 17, 2026, Defendant responded with objections to the amended deposition notice. (Xie Decl., ¶ 15, Exh. 4.)

Subsequently, on July 23, 2026, Plaintiff's counsel emailed Defendant's counsel to request available dates for the deposition. (Xie Decl., ¶ 16, Exh. 5.) Notably, Plaintiff's counsel did not address the objections. (Xie Decl., Exh. 5.) On July 30, 2026, Plaintiff's counsel followed up on the request but again failed to address any of the objections. (Xie Decl., ¶ 17, Exh. 6.)

LEGAL
STANDARDS

Code of Civil Procedure

section 2025.450, subdivision (a) provides: "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

The motion must "be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) "Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc., § 2023.020.)

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7

(commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

“Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery.

... (i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made..” (Code Civ. Proc., § 2023.010, subds. (d), (i).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Plaintiff requests that the Court issue an

order “waiving all of Defendant’s objections and compelling Defendant to produce a qualified PMQ witness and all responsive documents within 10 calendar days from entry of this Court’s Order.” (Motion, p. 7:26-28.)

However,

Plaintiff must meet and confer with Defendant before bringing this motion, either by contacting the deponents to inquire about the nonappearance or by following Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section

2016.040 states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code

Civ. Proc., § 2016.040, subd. (a), emphasis added.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On January 21, 2025, Plaintiff served a deposition notice for Defendant’s

PMQ, scheduling the deposition for February 7, 2025. (Xie Decl., ¶ 12, Exh. 1.) The deposition notice included nineteen matters

for examination and thirty-five requests for the production of documents. (Xie Decl., ¶ 12, Exh. 1.)

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unilaterally scheduled, indicating that neither the PMQ nor Defendant’s counsel would be available on that date. (Xie

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expressed a willingness to meet and confer regarding the deposition date and raised objections regarding both the matters for examination and the requested documents. (Xie Decl., Exh. 2.) Moreover, Defendant agreed to provide a PMQ for specific categories. (Xie Decl., Exh. 2.)

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The Court finds that Plaintiff did not sufficiently engage in the meet-and-confer process. To begin with, the Court notes that Plaintiff made no attempts to confer in person, by telephone, or via videoconference regarding deposition dates, matters for examination, or the requested documents, as mandated by Code of Civil Procedure section 2016.040. Instead, Plaintiff's actions were limited to sending two emails to request deposition dates, with no effort made to address Defendant's objections. The Court does not regard this as sufficient effort to meet and confer, regardless of whether the process mandates in-person, telephonic, or videoconference discussions.

Plaintiff seeks to attribute blame to Defendant, asserting, "Notably, despite [the emails on July 23rd and 30th], Defendant failed to offer any alternative date prior to the filing of the Motion. Nevertheless, Defendant now attempts to shift blame by asserting that Plaintiff failed to adequately meet and confer. Defendant cannot simultaneously ignore Plaintiff's good-faith efforts while weaponizing the meet and confer process as a basis to oppose the Motion." (Reply, p. 2:8-12.) The Court finds this argument to be without merit.

The Court does not find it to be Defendant's obligation to produce deposition dates when it remains unclear which categories will require a PMQ. Plaintiff ignored Defendant's objections to the matters for examination. In the absence of a discussion concerning the matters to be addressed during the deposition, Defendant cannot reasonably propose deposition dates.

Additionally, Plaintiff contends, "When a party or party-affiliated witness fails to appear for deposition, such as in this matter, the traditional 'meet and confer' requirement for discovery motions is substituted for a lesser 'inquiry' declaration. CCP §2025.450(b)(2)." (Reply, p. 2:23-26.) Plaintiff asserts that "[t]his Motion is brought under section 2025.450(a) following Defendant's failure to appear, and section 2025.450(b)(2) expressly permits the moving party to proceed instead on 'a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.' Here, Plaintiff's counsel's inquiries for deposition dates went unanswered." (Reply, p. 2:16-19.)

This argument would be relevant only if there had been an actual nonappearance. "Nonappearance" is tied specifically to the deponent's complete failure to attend the scheduled deposition, rather than merely a "failure" to provide deposition dates. It is evident that a PMQ did not fail to appear, as a deposition was never held or conducted. Neither party contends that Plaintiff proceeded with the deposition in which the PMQ failed to appear. This situation is typically evidenced by a declaration and a certificate of nonappearance issued by a court reporter. Consequently, given that the PMQ did not fail to appear, Plaintiff must comply with Code of Civil Procedure section 2016.040, which, as previously discussed, Plaintiff has failed to do.

Consequently, the Court DENIES Plaintiff's motion in its entirety.

ORDERS

1) Plaintiff

Eyad Wahby's Motion to Compel the Deposition of Defendant General Motors LLC's Person Most Qualified and Production of Documents is DENIED.

2) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 14, 2026

Tamara
Hall

Judge
of the Superior Court